

TENTATIVE RULINGS for LAW and MOTION

July 08, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen

(530) 406-6777

TENTATIVE RULING

Case: **Fonseca v. Unlimited Communications, Inc.**
Case No. CV2023-2246

Hearing Date: **July 8, 2026** **Department Thirteen** **9:00 a.m.**

The Court notes that plaintiff Juan Fonseca failed to establish attempts to meet and confer prior to filing this motion, as required. (Code Civ. Proc., § 435.5; see generally Gunning decl.) Nonetheless, the Court cannot deny the motion on this ground. (Code Civ. Proc., § 435.5, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Plaintiff's unopposed motion to strike defendant's answer is **DENIED**. (Code Civ. Proc., §§ 435, 436.) Plaintiff had until August 19, 2024, to serve and file a motion to strike. (Code Civ. Proc., §§ 435, 430.40, subd. (b).) Additionally, the Court finds defendant Unlimited Communications, Inc. was represented by counsel at the time it filed its answer on August 7, 2024. (Code Civ. Proc., § 436; Complaint, p. 13.) Although a corporate defendant must be represented by counsel, Code of Civil Procedure sections 435 and 436 are not a basis upon which to grant a motion to strike a corporate defendant's answer, when such corporate defendant was represented by counsel at the time it filed its answer and has not attempted to appear in court without representation by an attorney. (*CLD Construction, Inc. v. City of San Ramon*, (2004) 120 Cal.App.4th 1141, 1149.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **LeCount v. Universal Limousine and Transportation**
 Case No. CV2022-1429

Hearing Date: **July 8, 2026** **Department Thirteen** **9:00 a.m.**

On the Court's own motion, plaintiff Greg LeCount's motion to tax costs is **CONTINUED** to **July 22, 2026**, at 9:00 a.m. in Department Thirteen.

By **July 15, 2026**, plaintiff may file a supplemental declaration under seal regarding his ability to pay and health status regarding what amount of expert fees is reasonable, as requested. (Reply, p. 2.)

No other documents will be considered.